

IN THE SUPREME COURT OF PAKISTAN
(Original Jurisdiction)

Constitutional Bench:

Justice Muhammad Ali Mazhar
Justice Naeem Akhter Afghan
Justice Shahid Bilal Hassan
Justice Salahuddin Panhwar
Justice Shakeel Ahmad

Constitution Petitions No. 22, 20, 25 to 28 & 30 of 2025

(Constitutional Petitions U/A 184(3) of the Constitution for declaring Notification No. F.10 (2)/2024-A.II dated 1st February 2025 regarding Transfer of Judges to Islamabad High Court as Illegal and Unconstitutional)

AND

C.M.A.2136/2025 IN C.P.22/2025 and
C.M.A.2137/2025 IN C.P.20/2025 and
C.M.A.2138/2025 IN C.P.26/2025 and
C.M.A.2139/2025 IN C.P.27/2025 and
C.M.A.2047/2025 IN C.P.28/2025

(Stay applications)

Justice Mohsin Akhtar Kayani, Judge, and others	(In CP 22/25)
Raja Muqsit Nawaz Khan	(In CP 20/25)
Imran Khan Niazi	(In CP 25/25)
Lahore High Court Bar Association, Lahore	(In CP 26/25)
Lahore Bar Association Lahore and another	(In CP 27/25)
Karachi Bar Association, Karachi	(In CP 28/25)
Riasat Ali Azad and others	(In CP 30/25)
	...Petitioners

Versus

The President of Pakistan, Pak Secretariat, Islamabad and others	(In CPs 22, 26 to 28 & 30/25)
Federation of Pakistan through, Secretary Ministry of Law, Justice & Parliamentary Affairs, Islamabad and others	(In CPs 20 & 25/25)
	...Respondents

For the Petitioners:

Mr. Muneer A. Malik, Senior ASC
Mr. Salahuddin Ahmed, ASC
Syed Rifaqat Hussain Shah, AOR
(In CP 22/25) assisted by Ms. Zainab Janjua
& Ms. Faaiza Qazi, Advocates.

Mr. Idrees Ashraf Malik, ASC
Raja Muqsit Nawaz Khan, ASC
(in CPs 20 & 25/25)

Mr. Hamid Khan, Senior ASC
Mr. Waqar Rana, ASC
Mr. Ajmal Ghaffar Toor, ASC
(in CPs 26 & 27/25)

Mr. Faisal Siddiqi, ASC
Mr. Riasat Ali Azad, ASC
Mr. Anis Muhammad Shahzad, AOR
Assisted by Mr. M. Ammar Rafique & Sikandar
Naeem Qazi, Advocate (in CPs 28 & 30/25)

For the Respondents:

For the Federation, the	Mr. Mansoor Usman Awan, AGP Ch. Aamir Rehman, Addl. AGP Raja Shafqat Mehmood Abbasi, DAG
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President of Pakistan, Registrar SCP & Secretary JCP	Mr. Muhammad Amir Malik, AOR Assisted by: Mr.Hasan Mehmood, Legislative Advisor, M/O Law, Ms. Mariyam Ali Abbasi & Mr. Saad Javed Satti, Advocates
For Province of Punjab:	Mr. Muhammad Amjad Pervaiz, AG Mr. Waseem Mumtaz Malik, Addl. AG Rao Muhammad Aurangzeb, Asstt. AG Assisted by: Mr. Muhammad Adil Chattha, Sr.Consultant
For Province of Sindh:	Mr. Suresh Kumar, Addl. AG Mr. Sibtain Mehmood, Addl. AG & Barrister Zeeshan Adhi, Addl. AG
For Province of KPK:	Mr. Shah Faisal Ilyas, Addl. AG
For Province of Balochistan:	Mr. Muhammad Ayaz Swati, Addl. AG Mr. Tahir Iqbal Khattak, Addl. AG
For ICT:	Mr. Ayyaz Shaukat, AG Dr. Mirza Muhammad Usman, AOR
For the Registrar LHC:	Mr. M. Shahid Latif Khan, Dy. Registrar
For the Registrar PHC:	Mr. Wajid Ali Khan, Director (Regulations) (via video link from Peshawar)
For the Registrar HCS:	Mr. Sohail Muhammad Laghari, Registrar (via video link from Karachi)
For the Registrar IHC:	Mr. M. Asif Iqbal, Dy. Registrar
For the Transferee Judges:	Nemo
Dates of Hearing:	14 th , 17 th , 22 nd , 29 th , 30 th April; 07 th , 08 th , 14 th , 15 th , 19 th , 20 th , 21 st , 23 rd , 26 th , 27 th , 29 th May; and 16 th June to 19 th June, 2025.

Short Order

By majority of 3 to 2, comprising Justice Muhammad Ali Mazhar, Justice Shahid Bilal Hassan, and Justice Salahuddin Panhwar, the aforesaid Constitution Petitions are disposed of in the following terms, subject to amplification in detail:

1. The powers of the President of Pakistan under Sub-article (1) of Article 200 of the Constitution of the Islamic Republic of Pakistan, 1973 (“**Constitution**”) for the transfer of a Judge of the High Court from one High Court to another High Court and the provisions contained under Article 175A of the Constitution for appointment of Judges to the Supreme Court, High Courts, and the Federal Shariat Court by the Judicial Commission of Pakistan (“**JCP**”) are two distinct provisions dealing with different situations and niceties. Neither do they overlap nor override each other. The transfer of a judge by the President of Pakistan by means of Article 200 of the Constitution (permanently or temporarily) cannot be construed as a fresh appointment. Furthermore, the powers of transfer conferred to the President by none other than the framers of the Constitution

cannot be questioned on the anvil or ground that if the posts were vacant in the Islamabad High Court, then why they were not filled up by JCP through fresh appointments. One more important facet that cannot be lost sight of is that the transfer from one High Court to another High Court can only be made within the sanctioned strength, which can only be regarded as a mere transfer and does not amount to raising the sanctioned strength of a particular High Court.

2. In all fairness, if it is presumed that all posts should be filled by the JCP alone through fresh appointments, then such interpretation or state of mind, in our view, would not only go against the manifest intention of the framers of the Constitution but will also amount to negating or making redundant the substratum and existence of Article 200 of the Constitution; which Article is absolutely not dependent, concomitant, or at the mercy of Article 175A of the Constitution, but is an independent and standalone provision dealing with the transfer of judges of a High Court (permanently or temporarily) and not the appointment of judges, which assignment has been incontrovertibly conferred to the JCP autonomously in terms of Article 175A of the Constitution.

3. As far as Section 3 of the Islamabad High Court Act, 2010, is concerned, it only divulges that the Islamabad High Court shall consist of a Chief Justice and twelve other judges to be appointed from the provinces and other territories of Pakistan in accordance with the Constitution. In our considered view, this provision is only germane to the appointment of judges and does not, in any way, mean that a judge can only join the Islamabad High Court through a fresh appointment and not by way of a transfer or, in other words, that Article 200 does not apply to the Islamabad High Court, which interpretation would be against the exactitudes of the Constitution. Neither can Section 3 of the aforesaid Act supersede/override a constitutional mandate, nor can it control, nullify, or rescind the powers of transfer that are vested in the President of Pakistan under Article 200 of the Constitution.

4. Nevertheless, the exercise of the powers of transfer by the President of Pakistan under Article 200 of the Constitution is not unregulated or unfettered. It is structured on a four tier formula which expounds that no judge shall be transferred except with his consent and after consultation by the President with the Chief Justice of Pakistan and the Chief Justices of both High Courts. What does this mean? If at the very initial stage, a judge intended to be transferred from one High Court to another High Court refuses the offer/proposal, then obviously the matter ends forthwith. Even in the case of consent, the transfer shall be subject to consultation with two Chief Justices of the High Courts and the Chief Justice of Pakistan, as the paterfamilias of judiciary, who may, during the consultation process, pragmatically ruminate the pros and cons germane to the transfer proposal, including the aspect of public interest, if any. Hence, for all intents and purposes, it is reverberated beyond any shadow of doubt that before exercising the power of transfer, certain inbuilt procedures and mechanisms have to be followed in letter and spirit and the decision, or the right of refusal or primacy, is within the sphere and realm of judiciary and not within the domain of executives. Therefore, it does not in any

case compromise the independence of the judiciary for the discernable reason that the decision to accept or reject is exclusively within the hands of the judiciary.

5. Thus, for all intents and purposes, the transfer of judges by the President of Pakistan, by means of the impugned Notification No. F.10 (2)/2024-A.II, dated 1st February 2025 ("**Notification**") is within the framework of the Constitution and cannot be declared *ultra vires*.

6. We are sanguine that in normal circumstances, the decision on *inter se seniority* disputes or disagreements amongst the judges of a High Court are within the domain of the Chief Justice of that High Court, at the administrative side, but here the matter relates to the transfer of judges from other High Courts to the Islamabad High Court. Thus, the seniority issue is not exactly *inter se seniority* within the existing strength of judges of one and the same High Court, prior to bringing forth the transfer of three judges under Article 200 of the Constitution, but is somewhat cropped up between the transferee judges and the judges that already existed prior to the transfer. At this juncture, it is also pertinent to mention that there is no All Pakistan Cadre/unified or combined seniority list of High Court judges for determining their seniority at the time of transfer. Therefore, in our view, the terms and conditions of transfer (permanently or temporary) including seniority should have been taken up and mentioned by the President of Pakistan at the time of issuing the Notification of transfer in terms of Article 200 of the Constitution.

7. As a result of the above discussion, we partially remand the matter to the President of Pakistan, without upsetting the Notification of transfer, to determine the seniority after examining/vetting the service record of the transferee judges as soon as possible, including the question of whether the transfer is on a permanent or temporary basis.

8. Till such time that the seniority and nature of transfer (permanent or temporary) of the transferee judges is determined by the President of Pakistan by means of notification/order, Mr. Justice Sardar Muhammad Sarfraz Dogar, already holding the office of Acting Chief Justice of the Islamabad High Court, will continue to perform as the Acting Chief Justice of the Islamabad High Court.

2. All Civil Misc. Applications are also disposed of accordingly.

Judge

Judge

Judge

ISLAMABAD

19th June, 2025

ORDER OF THE COURT

By majority of 3 to 2 (comprising Justice Muhammad Ali Mazhar, Justice Shahid Bilal Hassan, and Justice Salahuddin Panhwar), all the Constitution Petitions are disposed of along with Misc. Applications and the matter is partially remanded to the President of Pakistan in terms of the Short Order dated 19.06.2025. Whereas, Justice Naeem Akhter Afghan and Justice Shakeel Ahmad, *vide* their own short order dated 19.06.2025 allowed the Constitution Petitions and set aside the impugned Notification No.F.10(2)/2024-A.II, dated 01.02 2025.

ISLAMABAD
19th June, 2025

Approved for reporting